

Basetty Venkata Pradeep Kumar vs Basetty Gnana Deepthi Alias S.Gnana ... on 22 July, 2020

Author: M. Ganga Rao

Bench: M. Ganga Rao

THE HON'BLE SRI JUSTICE M. GANGA RAO

CIVIL REVISION PETITION No.2110 of 2019

ORDER:

The husband/respondent in IA.No.36 of 2019 in HMOP.No.39 of 2017 filed this civil revision petition under Section 115 CPC challenging the order dated 04.07.2019 passed in the above IA by the learned Principal Senior Civil Judge, Rajampet, FAC Additional Senior Civil Judge (Fast Track Court), Badvel.

2. Heard learned counsel for the revision petitioner/husband and learned counsel for the respondent herein/wife. I have perused the material record.

3. The parties shall hereinafter be referred to as they are arrayed in the aforesaid interlocutory application for convenience and clarity.

4. The introductory facts, in brief, are that the respondent filed HMOP.No.39 of 2017 on the file of the Principal Senior Civil Judge's Court, Rajampet, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, for dissolving the marriage between the parties and granting a decree of divorce on the ground of cruelty. The petitioner having entered appearance filed her counter. However, she failed to cross examine the respondent and adduce evidence on her side. Thereafter the respondent's OP was decreed as prayed for on 03.08.2018. Therefore, the petitioner filed the subject interlocutory application to condone the delay of 149 days in presenting the petition to set aside the ex parte decree and order. The respondent resisted the said petition. On merits, the trial Court allowed the petition. Aggrieved thereof the respondent filed this revision.

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5. The case of the petitioner in support of her request to condone the delay, in brief, is this: On receipt of summons in the HMOP, she filed her counter, on 04.09.2017, denying the false allegations made by the respondent. She also attended the Court personally and through her advocate three or four times. Thereafter, she filed a transfer petition in Tr.C.MP.No.863 of 2017 in Tr.CMP(SR).No.45624 of 2017 before the High Court. Notices were ordered in the said transfer petition to the respondent. She also filed a memo before the trial Court to the effect that she filed a transfer petition before the High Court and the same is pending. Therefore, she was under the

impression that the HMOP would be withdrawn from the trial Court and the trial would take place before the Senior Civil Judge's Court, Markapuram. While the matter stood thus, on 21.01.2019, she attended the Court of Judicial Magistrate of First Class, Badvel, to give evidence in C.C.No.552 of 2017. In the said matter, the respondent requested for an adjournment and stated that he already obtained divorce in the divorce petition filed by him. Immediately she contacted her advocate regarding the pendency of the HMOP. On verification of the status of the HMOP through judicial website, her advocate informed that as there was no representation on her behalf when the matter was called on 03.08.2018, she was set ex parte and the petition was allowed by dissolving the marriage by a decree of divorce. Her absence before the Court on 03.08.2018 was on account of misconception and not either deliberate or intentional. If the decree of divorce is to be continued, she will be put to irreparable loss and inconvenience besides suffering along with her tender child. However, as a delay of 149 days had occasioned in filing the petition to set aside the ex parte decree of divorce, the petition for condonation of delay is filed. There are no willful laches on the part of the petitioner.

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6. The case of the respondent in his counter, in brief, is this: - The allegation that the petitioner was under the impression that the HMOP would be withdrawn and trial would take place before the Senior Civil Judge's Court, Markapuram is only an illusion of the petitioner and unsustainable in the eye of law. The other allegations that the petitioner came to know of passing of the decree of divorce when this respondent sought for an adjournment in the CC and stated that he had already obtained divorce is totally false and created for the purpose of filing this petition. In-fact, this respondent never sought adjournment and it is the petitioner who demanded for amount and not came forward to proceed with the trial of the case. The further allegations with regard to her contacting her advocate regarding the pendency of the OP are also totally false. The respondent filed his chief affidavit on 30.10.2017. Since the said date the petitioner failed to cross examine the respondent though the trial Court gave ample opportunities to the petitioner. After several adjournments, on 12.06.2018, as the petitioner was absent, the trial Court treated the cross examination of PW1 by the petitioner as 'nil' and posted the matter to 27.06.2018, for further evidence of the respondent. On 27.06.2018 as the respondent reported no further evidence, the matter was posted to 04.07.2018, for the petitioner side evidence. Since 04.07.2018, there was no representation on the side of the petitioner. Finally, the trial Court allowed the petition on 03.08.2018. As such filing a petition for setting aside the ex parte decree is bad under eye of law. The petitioner ought to have preferred an appeal against the orders of the trial Court but filing petition under Order IX Rule 13 CPC is not maintainable. In such a case the petition under Section 5 of the Limitation Act is also not maintainable. Further, after expiry of the appeal period, the 4 MGR,J CRP_2110_2019 respondent got married on 27.12.2018. After getting knowledge of the same, the petitioner filed this petition only in order to harass and extract more money from the respondent. The petition is devoid of merits and liable to be dismissed as the petition is not maintainable being void ab initio.

7. At the hearing before the trial Court no oral and documentary evidence was adduced. The trial court, as already noted, allowed the petition.

8. Learned counsel for the revision petitioner/respondent, while reiterating the pleaded case in the counter filed before the trial Court vehemently contended that the learned trial Judge ought to have appreciated the facts stated in the counter before passing the impugned order and had the learned trial Judge considered those aspects, the petition would have been dismissed. He further submitted that after obtaining the decree for divorce in the OP filed by the husband, he has re-married, after expiry of appeal period, and that no cause much less sufficient cause was shown for setting aside the decree and that even if the decree and order are set aside, no useful purpose would be served as the husband has already remarried.

9. Learned counsel for the respondent/petitioner/wife while supporting the orders of the trial Court would contend that in matrimonial matters, the disputes between the spouses should not be treated as a legal litigation only but the approach should be humanistic and the trial Court has rightly allowed the petition.

10. I have gone through the entire material record and the order impugned.

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11. The specific contention of the petitioner is that since she filed a transfer petition in Tr.C.MP.No.863 of 2017 in Tr.CMP(SR).No.45624 of 2017 before the High Court seeking to transfer the HMOP filed by the respondent from the file of the Court of the Senior Civil Judge, Rajampet to the file of the Court of the Senior Civil Judge, Markapuram, and as she also filed a memo before the Senior Civil Judge's Court, Rajampet submitting that she filed a transfer petition, she was under

the impression that the case would be withdrawn and trial would take place before the Senior Civil Judge's Court, Markapuram, and that her absence before the trial Court is neither deliberate nor intentional. On a plain reading of the affidavit filed in support of the petition, the contents of which are already stated supra, and on consideration of the submissions made, this Court is satisfied that there is sufficient explanation for non appearance of the petitioner before the trial Court and also as regards lack of knowledge of the decree passed in the OP. It is a matter of record that during the pendency of the HMOP, the petitioner filed transfer petition before this Court and a memo to that effect is also filed before the trial Court. Having regard to the fact that sufficient cause is shown for condonation of delay, and as it appears that the delay cannot be said to be deliberate and unjustified in the facts and circumstances of the case, this Court finds that the petitioner's request for condonation of delay that had occasioned in seeking to set aside the ex parte decree merits consideration.

12. The trial court, having observed that a justice oriented approach is required to be adopted in deciding the applications filed under Section 5 of the Limitation Act to sub-serve the ends of justice and there is no need of taking a pedantic approach in dealing with explanation of delay and the Court should not presume the delay occasioned deliberately or 6 MGR,J CRP_2110_2019 on account of mala fides opined that to meet the ends of justice and to decide the case on full length of

trial one more opportunity may be given to the petitioner and allowed the petition and condoned the delay.

13. Having regard to the facts peculiar to this case, it is profitable to refer to the following decisions' of the Hon'ble Supreme Court. In G.P. Srivastava v. R.K. Raizada and others [2000(4) ALD 54) SC it was held as follows:

"The "sufficient cause" for non-appearance refers to the date on which the absence was made a ground for proceeding ex parte and cannot be stretched to rely upon other circumstances anterior in time. If "sufficient cause"

is made out for non-appearance of the defendant on the date fixed for hearing when ex parte proceedings were initiated against him, he cannot be penalised for his previous negligence which had been overlooked and thereby condoned earlier. In a case where the defendant approaches the court immediately and within the statutory time specified, the discretion is normally exercised in his favour, provided the absence was not mala fide or intentional. For the absence of a party in the case the other side can be compensated by adequate costs and the lis decided on merits."

In State of Bihar and others v. Kameshwar Prasad Singh and another [(2000)m9 SCC 94] it was held as follows:

"11. Power to condone the delay in approaching the Court has been conferred upon the Courts to enable them to do substantial justice to parties by disposing of matter on merits"

14. In view of the above judgments of the Hon'ble Supreme Court, this Court in the interest of justice felt it appropriate to decide the lis on merits instead of dismissing the case on technicalities. Hence, this 7 MGR,J CRP_2110_2019 Court is satisfied that there is no jurisdictional error or illegality in the order of the Court below whereby an opportunity was given to the petitioner to contest the OP filed by the husband, on merits, calling for interference. Further, generally when the trial Court exercised the discretion judiciously and allowed the petition for condonation of delay by recording reasons, which are sustainable in law, this Court while exercising the revisional jurisdiction will not interfere with such discretionary order.

15. In the result, the Civil Revision Petition is dismissed. No order as to costs.

Miscellaneous petitions, if any, pending in this revision petition shall stand closed.

____ JUSTICE M. GANGA RAO 22.07.2020 Vjl